



WATER YIELD TEST NOTICE

Contract of Sale between Buyer _____
and Seller _____
for Property known as _____

Buyer and Seller are hereby notified that repairs of the Property may require that the individuals engaged to perform such repairs must be duly licensed. **The Water Yield Test provided herein is NOT for the purpose of making items of a routine maintenance and/or cosmetic nature the subject of further negotiations between Buyer and Seller.**

Notice Pursuant to Maryland REALTORS® Water Yield Test Addendum

This Notice is designed to assist Buyers and Sellers in the communication of the results and responses relating to the Water Yield Test and is intended for use in conjunction with Maryland REALTORS® Residential Contract of Sale and Water Yield Test Addendum. Maryland REALTORS® Water Yield Test Addendum specifies the time periods agreed upon by the parties for any action, response, or notice.

1. Water Yield Test. This Notice pertains to the results of the Water Yield Test as previously agreed to by both parties in the Water Yield Test Addendum. Buyer may only request corrective action for deficiencies that cause the water flow to fail to yield a minimum rate of one (1) gallon per minute measured in accordance with acceptable industry standards.

2. NOTICE FROM BUYER TO SELLER. Buyer gives Notice to Seller, as follows (**Check One**):

☐ **A.** Test results are satisfactory to Buyer and/or Buyer is NOT requesting corrective action from Seller. (No response from Seller is required.)

OR

☐ **B.** Test results are not satisfactory to Buyer. Buyer has attached a copy of the entire Water Yield Test and requests that the following deficiencies be corrected by Seller (the "Corrective Action") (additional pages may be attached if necessary).

Buyer Signature **Date**

Buyer Signature **Date**



3. RESPONSE FROM SELLER TO BUYER (Check One):

☐ **A.** Seller Agrees to complete the Corrective Action as specified in Paragraph 2.B. (No response from Buyer is required.)

OR

☐ **B.** Seller will NOT complete the Corrective Action specified in Paragraph 2.B as the cost of the Corrective Action exceeds the amount set forth in the Water Yield Test Addendum.

Seller Signature

Date

Seller Signature

Date

4. RESPONSE FROM BUYER TO SELLER. Buyer, having received Seller's written notice in Paragraph 3 that Seller will NOT complete the Corrective Action (3.B) gives written notice to Seller as follows **(Check One):**

☐ **A.** Buyer accepts Seller's response and refuses to pay the cost of the Corrective Action that exceeds the amount set forth in the Water Yield Test Addendum. Buyer may terminate the Contract of Sale by delivering a Unilateral Notice of Termination Under Contract of Sale to Seller.

OR

☐ **B.** Buyer accepts Seller's response and agrees to pay the cost of the Corrective Action that exceeds the amount set forth in the Water Yield Test Addendum.

Buyer Signature

Date

Buyer Signature

Date

All other terms and conditions of the Contract of Sale remain in full force and effect.

